



# PREPARATION OF ELECTORAL ROLLS (FEDERALLY ADMINISTERED TRIBAL AREAS) (AMENDMENT) ORDER, 1996

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## PRESIDENT ORDER No. 3 OF 1996

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### ORDER

*further to amend the Preparation of Electoral Rolls (Federally Administered Tribal Areas, Order, 1975.*

WHEREAS it is expedient further to amend the Preparation of Electoral Rolls (Federally Administered Tribal Areas) Order, 1975 (I of 1975), for the purposes hereinafter appearing;

NOW, THEREFORE, in exercise of the powers conferred by clause (6) of Article 51 of the Constitution of the Islamic Republic of Pakistan the President is pleased to make the following Order:-

**1. Short title and commencement.**—(1) This Order may be called the Preparation of Electoral Rolls (Federally Administered Tribal Areas) (Amendment) Order, 1996.

(2) It shall come into force at once.

**2. Amendment of Article 3, P.O.I. of 1975.** In the Preparation of Electoral Rolls (Federally Administered Tribal Areas) Order, 1975 (P.O.I. of 1975) hereinafter referred to as the said Order, in Article 3,-

(1) in clause (2), in sub clause (b), for the colon at end the semi-colon and word ";and" shall be substituted and thereafter the following new sub-clause shall be added, namely:-

"(c) of every person who

(i) is a citizen of Pakistan;

(ii) is not less than twenty-one years of age on the first day of January in the year in which the preparation or revision of the electoral rolls commences under this Order;

(iii) is not declared by a Competent Court to be of unsound mind; and

(iv) is or is deemed to be, resident in the electoral area,; and

(2) in clause (4),—

(i) for the words "twenty-one" the word "seven" shall be substituted; and

(ii) after clause (4), amended as aforesaid, the following new clause and Explanation shall be added, namely :—

(5) Notwithstanding anything contained in clause (2) or the Representation of the People Act, 1976 (LXXXV of 1976), or any other law for the time being in force, for the purpose of the election to be held on 3<sup>rd</sup> day of February, 1997, pending preparation of the new electoral rolls, any person shall be deemed to be an elector if he is certified to be a resident in that constituency by the Political Agent or, as the case may be, the Deputy Commissioner.

*Explanation.*—For the purpose of this Order, a person shall be deemed to be a resident in a constituency if he ordinarily resides or owns or is in possession of, dwelling house or other immoveable property therein and shares the profit and loss of the tribe."

**3. Amendment of Article 5, P.O.I of 1975.** In the said Order, in Article 5, in clause (b), in the proviso, for the full stop at the end a colon shall be substituted and thereafter the following further proviso shall be added, namely:—

"Provided further that the provisions of the first proviso shall not apply for the purposes of the election to be held on the 3<sup>rd</sup> day of February, 1997, and amendment in the electoral rolls may be made till such date as may be notified by the Chief Election Commissioner."

**4. Insertion of new Article 6A, P.O.I of 1975.** In the said Order, after Article 6 the following new Article shall be inserted, namely :—

**"6A. Removal of difficulties.** The Governor, North-West Frontier Province, as the Agent of the President, may, if any difficulty arises in giving effect to any provision of this Order, issue such instructions for effective implementation of the provisions of this Order and removal of any difficulty as he may deem fit regarding the election to be held on the 3<sup>rd</sup> day of February, 1997."

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